

SENATE JOINT RESOLUTION 86

By Yarbro

A RESOLUTION to amend Article VI, Section 14, of the
Constitution of Tennessee, relative to penalties
for violations of municipal ordinances.

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE ONE HUNDRED
FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE SENATE
CONCURRING, that a majority of all the members of each house concurring, as shown by the
yeas and nays entered on their journals, that it is proposed that Article VI, Section 14, of the
Constitution of Tennessee be amended by adding the following to the end of the section:

Notwithstanding this section, a municipality may, in its discretion, impose a fine
for a violation of a municipal ordinance without such fine being assessed by a
jury in an amount not to exceed that prescribed by the General Assembly;
provided, that the fine is just and reasonable under the circumstances.

BE IT FURTHER RESOLVED, that the foregoing be referred to the One Hundred
Fifteenth General Assembly and that this resolution proposing such amendment be published in
accordance with Article XI, Section 3, of the Constitution of Tennessee by posting such
amendment on the official website of the Secretary of State and on the official website of the
General Assembly.

BE IT FURTHER RESOLVED, that the clerk of the House of Representatives is directed
to deliver copies of this resolution to the Secretary of State, with this final resolving clause being
deleted from such copies.